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Mr. Just. Holloway. Pray give me leave, Sir; Then the King having made such a Declaration of a general Toleration and Liberty of Conscience, and afterwards he comes and requires the Bishops to disperse this Declaration; this, they say, out of a Tenderness of Conscience they cannot do, because they apprehend it contrary to Law, and contrary to their Function? What can they do, if they may not petition?

Mr. Soll. Gen. I'll tell you what they should have done, Sir. If they were commanded to do any thing against their Consciences, they should have acquiesced till the Meeting of the Parliament.

[At which some People in the Court kissed.]

Mr. Att. Gen. This is very fine, indeed! I hope the Court and the Jury will take notice of this Carriage.

Mr. Soll. Gen. My Lord, It is one thing for a Man to submit to his Prince, if the King lay a Command upon him that he cannot Obey, and another thing to Affront him. If the King will impose upon a Man what he cannot do, he must acquiesce: But shall he come and fly in the Face of his Prince? Shall he say it is Illegal, and, that the Prince acts against Prudence, Honour or Conscience? And throw Dirt in the King's Face? Sure that is not to be permitted; that is Libelling with a Witness!

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Ld. Ch. Just. Truly, Mr. Sollicitor, I am of Opinion, that the Bishops might *petition* the King, but this is not the right way of bringing it; I am not of that Mind, that they cannot *petition* the King out of Parliament; but if they may *petition*, yet they ought to have done it in another manner: For if they may in this reflective way *petition* the King, I am sure, it will make the Government very precarious.

Mr. Just. Powel. Mr. Sollicitor, it would have been too late to stay for a Parliament, for it was to have been distributed by such a Time.

Mr. Soll. Gen. They might have lain under it, and submitted.

Mr. Just. Powel. No, they would have run into Contempt of the King's Command, without *petitioning* the King not to insist upon it; and if they had *petitioned*, and not have shewn the Reason why they could not obey, it would have been looked upon as a piece of Sullenness, and that they would have been blamed for, as much on the other Side.

Mr. Serj. Baldock. After so long a Debate, I shall not trouble you long, most Things that are to be said having been said, but I shall only say this in short; I cannot deny, nor shall not, but that the Subject has a Right to *petition*; but I shall affirm it also, he has a Duty to obey; and that in this Case, the Power of the King to Dispense with Penal Laws in Matters Ecclesiastical, is not a thing that is

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now in Question, nor need we here have had these long Debates on both Sides: It may be perceived plainly, by the Proofs that have been read, that the Kings and Princes have thought themselves that they had such a Power, though, it may be, the Parliament thought they had not; and therefore the Declarations of the one, or the other, I shall not meddle with in this Case. That Power itself which the *King* has, as *King* of this Realm, in Matters rather *Ecclesiastical* and *Criminal*, than Matters of Property, may somewhat appear by what has been read before your Lordship; but all this will be nothing in our Case; neither has his Majesty now depended so much upon this Thing: The Declaration has been read to you; and what's there said? The *King* there says, That for those Reasons he was ready to suspend those Laws; And be they Suspended? Yet, my Lord, with this too, That he refers it to, and hopes to make it secure by, a Parliament: So that there being this, it has not gone, I think, very far; and, it not having been touched here, it is a point of Duty in my Lords the Bishops, as Bishops, that's here enquired into; Whether they should have meddled with this or no, in this manner, is the Question. That the *King* is Supreme over all of us, and has a particular Supremacy over them, as Supreme Ordinary, and Governor, and Moderator of the Church, is very plain: And, my Lord, it is as plain, that in such Things as concern the Church, he has a particular